

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Amber Myrick v. Clawson Motorsports**
Superior Court Case No. 24CECG02398

Hearing Date: May 7, 2026 (Dept. 501)

Motion: by Plaintiffs Amber and Wynonna Myrick to Compel
Defendant Polaris Industries, Inc.'s Further Responses to:
(1) Special Interrogatories, Set One, and
(2) Request for Production of Documents, Set One.

Tentative Ruling:

To grant the motion to compel further responses to Special Interrogatories, Set One, in part. Defendant Polaris Industries, Inc., ("Polaris") is directed to provide further responses to Special Interrogatory Nos. 33, 43, 51 and 52. To deny as to Special Interrogatory Nos. 44 and 46.

To grant the motion to compel further responses to Request for Production of Documents, Set One, in part. Polaris is directed to provide further responses and documentation for Request Nos. 61 and 70. To deny as to Request No. 73.

To deny the request for sanctions.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Explanation:

Motion to Compel Further Responses to Special Interrogatories, Set One

Plaintiffs Amber Myrick and Wynonna Myrick ("plaintiffs") move for an order compelling further responses from Polaris to special interrogatory Nos. 33, 43, 44, 46, 51 and 52.

Request No. 33: State the number of 2022 POLARIS RZR 200 vehicles that have been involved in ROLLOVERS, per YOUR records.

Request No. 43: State the number of SAFETY COMPLAINTS you have investigated regarding the 2022 POLARIS RZR 200.

Request No. 51: IDENTIFY each lawsuit (including case number and case name) brought against YOU from 2015 to the present in which an RZR MODEL was involved in a ROLLOVER.

Request No. 52: IDENTIFY each lawsuit (including case number and case name) brought against YOU from 2015 to the present in which a driver or occupant of an RZR MODEL alleged an injury.

Polaris¹ submits that the requests are irrelevant, overbroad, and not proportional to the needs of the case. Polaris also argues that plaintiffs cannot establish substantial similarity. Plaintiffs counter that relevancy has been established, as the defect at issue is present on other models of the RZR and is not limited to the specific vehicle involved in the incident causing injury (i.e. other RZR models are designed with the same arm ejection zone defect). This is relevant information because plaintiffs' are alleging that the vehicle's defect caused and/or contributed to the injury and was a defect known to Polaris, at least in part because it was present on other models of the RZR.

It does appear that the information sought is relevant to the action. In regard to whether it is overbroad and proportional, plaintiffs have limited the scope of the inquiries to approximately the past 10 years (i.e. 2015). The standard of substantial similarity used by Polaris, as pointed out by plaintiffs and conceded by Polaris, goes towards the admission of evidence rather than its discoverability. The court is inclined to find the agreed upon timeframe narrowing the scope of the inquiries to be sufficient to keep the inquiries proportional to the case.

Request Nos. 33 and 43 are made in regard to the same model vehicle as involved in the present action. The motion is granted as to these two requests. Request No. 51 is made as to the same type of incident that caused injury in the present action. The motion is granted as to this request. However, Request No. 52 seeks information as to any injury from any model of the RZR vehicle. This is overbroad, and the request is denied.

Special Interrogatory Nos. 44 and 46 were not raised or discussed during the parties' multiple meet and confer attempts. (See generally Kim Decl.) Plaintiffs do not refute this. Accordingly, the motion to compel further responses to Special Interrogatory Nos. 44 and 46 is denied.

Motion to Compel Further Responses to Request for Production, Set One

Plaintiffs move for an order compelling further responses to request for production of documents category nos. 61, 70 and 73.

Request No. 61: All DOCUMENTS referencing any ROLLOVERS involving RZR MODELS at any time from 2015 to the present.

Request No. 70: All DOCUMENTS referencing EXTREMITY injuries sustained by occupants of RZR MODELS during ROLLOVERS from 2015 to the present.

Request No. 73: All DOCUMENTS referencing SAFETY CONCERNS pertaining to potential EXTREMITY injuries of occupants of RZR MODELS from ROLLOVERS from 2015 to the present.

¹ Polaris's requests for judicial notice are denied.

As discussed above, plaintiffs' position is that other RZR models are designed with the same arm ejection zone defect as present on the RZR model at issue here, and the same defect can and has produced the same type of injury, regardless of the RZR model. The injury here was sustained as a result of a rollover, and the alleged defect of the vehicle is purported to have caused or contributed to plaintiff's injury. The engineering and design differences described by Polaris in its opposition do not appear to distinguish the models from this specific defect, other than to say some netting was added.

The information sought appears to be relevant to the case, and has been limited in scope to approximately the past 10 years (i.e. 2015). Request Nos. 61 and 70 are made regarding rollovers and extremity injuries sustained during rollovers within the limited timeframe. The motion as to these two requests is granted. However, Request No. 73 is made as to safety concerns pertaining to potential injuries, not any specific [types of] injuries or incidents causing injury. This inquiry is overbroad and not proportional to the case, and accordingly the motion is denied as to this request.

Sanctions

Plaintiff seeks monetary sanctions under Code of Civil Procedure sections 2023.010; 2023.030; 2030.300, subdivision (d); and 2031.310, subdivision (h). The court finds that neither party acted without substantial justification, and therefore that the imposition of sanctions would be unjust. The request is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/4/2026.
(Judge's initials) (Date)